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JUDGE HERBERT RIDER AND THE LYNCHING AT LABELLE

by JERRELL H. SHOFNER*

WHEN ONE THINKS of Florida during the 1920s, it is usually the “land boom” which comes to mind. The astronomical increase in property values, the population explosion, the fantastic advertising, and then the cataclysmic hurricane in September 1926, which brought it to a sudden and traumatic end, have dominated historical thought and literature of that decade in Florida. Yet much more was happening, and the “boom” was both the symbol and the vehicle of these other activities. Floridians and their southern neighbors were feeling the forces of unwelcome change as never before. The old agricultural system was breaking up, cities and city life were becoming more important, national news and especially national ideas were being reported and discussed with more frequency. The “red scare” in the aftermath of World War I, the dispute between “fundamentalists” and “modernists” over conflicts between Biblical and scientific interpretations of man’s origins, and the increasing restiveness of Negroes since they began migrating out of the South just after the turn of the century convinced many white Floridians that their way of life was being threatened by forces which they could not control. Applauded by many because it promised economic improvement, the “boom” not only exemplified the forces of change, but in many cases actually brought change into the lives of the state’s inhabitants. This was the case with Hendry County’s “moment of shame” when some of LaBelle’s prominent citizens brutally tortured and lynched a Negro road construction worker while most of their neighbors looked on in May 1926.¹

The Jim Crow system of legal separation of the races was firmly in place and rarely challenged by Floridians, or most other

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1. LaBelle *Caloosa Belle*, July 12, 1973.

Americans for that matter, by the 1920s. And like their neighbors in other states, North and South, Floridians augmented it by reviving the Ku Klux Klan, a secret vigilante organization which rode at night in disguise to "protect" its members' idea of a pure America against Negroes, errant wives and husbands, and sometimes Jews and Catholics and other minorities. While many who joined the Klan were only motivated by the desire for fellowship, the Klan did give substance to some of the most vicious motives that affect human beings. Men and women suspected of immoral behavior, and those whose cultural background differed, or who were deemed undesirable for whatever reasons, were sometimes punished by flogging, the application of tar and feathers, and even death. Such activities were statewide, but were more frequent in some areas than others. During the first nine months of 1926, there were sixty-three floggings in Putnam County.² The whipping of a naked woman in Gainesville in September 1926, was only the latest of a series of such beatings in Alachua County.³ At Delray that same week, "unidentified persons" lynched Samuel Nelson, a black man who had been jailed for allegedly attempting to assault a white woman.⁴ In remote Key West, an unidentified Negro was whipped, tarred and feathered, and run out of town by a mob for allegedly insulting a prominent white woman. This was the third such incident in Key West in a two-week period.⁵

Although they frequently paraded in the daytime and their officials spoke at public functions, the Klansmen usually did their gruesome work under cover of darkness. But, when word of an alleged transgression by a black person against the rules laid down by whites began to circulate, spontaneously-formed mobs often acted without waiting for nightfall. In May 1925, Jack West, a Negro, was acquitted of charges of breaking and entering by a Seminole County jury at Sanford. He boarded a train for Orlando. Angered by the jury's decision, a mob forcibly removed him from the railroad car at Longwood, hanged him to a tree, and riddled his body with bullets.⁶ Sometimes officials took

2. *New York Times*, September 14, 1926, clipping in Series C, Box 351, NAACP Papers, Library of Congress, Washington, D. C.

3. *Dallas Express*, September 25, 1926, *ibid*.

4. *Baltimore Afro-American*, October 23, 1926, C-353, *ibid*.

5. *Tampa Tribune*, May 15, 1926.

6. *Louisville News*, May 16, 1925, C-351, NAACP Papers.

care of such matters without the necessity of mobs. Harry Kier, a black bellboy, was arrested for "improper conduct toward a white woman guest" in a Miami hotel. At the direction of Chief of Police H. Leslie Quigg, two policemen took Kier to a lonely spot and shot him to death. This incident occurred in 1925, but was not revealed until three years later. The NAACP, which published records of lynchings, revised its 1925 list and announced that the change made Florida second in lynchings only to Mississippi. It had led the nation with five in 1924 and was again the premier lynching state in 1926 with six deaths.⁷

The most frequent cause of lynchings of blacks was allegations of assault or rape of white women, but such shocking acts were not always necessary to arouse a mob. Near Winter Haven in 1921, Willie Bales was peeling an orange while driving a wagon down a dirt road. He dropped his knife and got off his vehicle to pick it up. A little white girl happened to be walking down the road, saw him dismount, became frightened, and screamed. A mob of about 200 men killed him without waiting to find out the cause of her screams. The reporter of this atrocity gave an eloquent description of the plight of black Floridians at the time: "The collared [*sic*] people stand in great danger about the little town of Winter Haven the white folks have organized the Klu [*sic*] Klux Klan hear. . . . Why we as collared people of the South is treated awful by the Lower class of white people they are the ones that start the trouble and then that will bring some of the best white people in it whom we would look to far [*sic*] protection they get mixed up in the affairs and then we have no one to look to for help."⁸

Not everyone accepted mob rule. Some officials and attorneys went to considerable lengths to enforce the laws. When his jail was stormed at Palatka in 1923, Sheriff P. M. Hagan halted the attack and arrested eleven of the would-be-lynchers. Later that year Henry Simmons was hanged and shot by a mob at Palm Beach. Sheriff R. C. Baker offered a personal reward of \$100 for information leading to apprehension of the guilty parties. NAACP officials were especially impressed to find that in 1914 Joseph P.

7. New York *World*, March 24, 1926, C-353, *ibid*; New York *Herald Tribune*, March 19, 1928, *ibid*; James Weldon Johnson to Editor, March 5, 1928, *ibid*.

8. Unidentified writer to Johnson, April 11, 1921, *ibid*.

Long, a black man who had killed a member of a white lynch mob at Aberdeen, in Jackson County, was acquitted of criminal charges against him. So far as they could find, that was the first case south of Washington where a Negro had been acquitted by a white jury for killing a white man in self defense. Just as unusual was the case of Britt Pringle, a white man, who killed John Simmons, a black proprietor of a woodyard near Jacksonville, in 1926. Prosecuted by Charles M. Durrance and Ion L. Farris in Judge Dewitt T. Gray's court, Pringle was found guilty and sentenced to death. The two had earlier obtained the conviction of O. P. Kirtland and Fred Stokes, both white, for killing a black man. The two were sentenced to life imprisonment. A month later three white brothers shot a black man during the theft of an automobile near Tampa. Mark Lewis was sentenced to life in prison, Monty Lewis to twenty years, and Edward Lewis to ten.⁹

But officials also enforced the state's Jim Crow laws which received several challenges because of increased travel from northern states as a result of the "boom." Mrs. Blanche Brookins, a wealthy black from New York City, was unimpressed when, upon reaching Jacksonville aboard an Atlantic Coastline train, she was told that she would have to give up her Pullman berth and go to the "Jim Crow" car. She ignored the conductor, who wired ahead to the authorities in Palatka. There she was taken forcibly from the train and brought before County Judge J. C. Calhoun. The judge fined her \$500 and costs, commenting that "that happens to be the maximum penalty or it would be more." Perhaps even more adverse to the state's image as a tourist mecca was an incident at Fort Pierce in January 1926. En route to Miami from New York, a Negro couple were in a drawing room near the one occupied by their white employers. Told that "niggers" were not allowed to ride through Fort Pierce on Pullman cars, the two were ejected from the train without an opportunity to take off their baggage. When the white employers found what had happened, they gathered up the belongings of the two Negroes, got off the train, and went back by car to aid them. The train did not wait.¹⁰

9. Albany (New York) *Journal*, March 2, 1923, C-351, *ibid*; Jacksonville *Journal*, June 7, 1923, *ibid*; E. V. Wooldridge to Herbert Seligman, July 24, 1919, *ibid*; *Tampa Tribune*, June 26, 1926.

10. *New York Age*, January 16, July 3, 1926.

Miami, at the center of the 1920s boom, was just as harsh on blacks. Skilled workers such as masons, plasterers, and carpenters were prohibited from working in the white sections of the city, and both labor unions and local police enforced that policy. Negro chauffeurs were prohibited from driving inside the Miami city limits. At the height of the boom, when it was learned that a Negro orchestra from Columbus, Ohio, was booked for an engagement at one of the large hotels, its members were horse-whipped and driven out of town.¹¹

It was ironic that this rigid Jim Crow system was an underlying cause of the brutal lynchings of the time, and most whites accepted it as proper. At the same time many of these people vigorously disapproved of mob lynchings and clearly voiced their sentiments on the matter. When Chandler Colding was taken from sheriff's deputies and lynched near Ocala in January 1926, the officials made no effort to protect their prisoner. Prominent citizens of Ocala, Winter Park, Orlando, Tampa, and Gainesville protested to Governor John Martin, demanding that an investigation of the incident be made.¹² Will Alexander, director of the recently organized Commission on Interracial Cooperation in Atlanta also urged the Florida governor to see that mobsters were prosecuted and the negligent officers were removed because the "entire South [was] blamed for the barbarous practices of [a] few backward communities and American civilization and Christianity [was] discredited around the world." Even as these people wrote, Simon Mulligan was being abducted from his Jacksonville home to be mutilated by a mob.¹³

LaBelle was a community of about 1,000 inhabitants in the 1920s, the county seat of sparsely populated Hendry County. While accepting the values of the rest of Florida, LaBelle was not directly concerned with segregation, Jim Crow laws, or racial

11. John Strothers to Editor, *New York Age*, March 6, 1926; *New York Age*, October 2, 1926.

12. *New York Age*, April 3, 1926. Among those who wrote were J. H. Terrell, president of the Ocala chamber of commerce; Frank Harris, editor of the *Ocala Banner*; Bishops Cameron Mann and John D. Wing; L. C. Massey of the State Bank of Orlando; D. B. McKay, publisher of the *Tampa Times*; J. M. Farr, L. M. Bristol, and J. R. Benton of the University of Florida; Mrs. G. W. Atkinson of Tampa; and Mrs. U. G. Swartz and Mrs. A. T. Guy of Gainesville.

13. *New York Age*, January 30, 1926, C-351, NAACP Papers; *St. Louis Argus*, February 19, 1926, *ibid*.

difficulties because there were few blacks in the county. Three black families in LaBelle, though socially segregated, were well known and generally liked by the white citizens. On the other hand, the town was a wide open, frontier community whose inhabitants were accustomed to the rough, direct, and sometimes violent individual relations common to the American frontier everywhere. The town council had even once hired a gunman as marshal when the situation had gotten out of control. Aware of their neighbors propensity for direct action, citizens were usually reluctant to speak out in opposition to majority views once they were made known. Those who did were well aware of the possibilities of serious consequences.

Although somewhat isolated from the population centers which had mushroomed during the boom, LaBelle was beginning to feel the effects of growth by 1926. Two developers were planning projects near the community, and county leaders were determined to open the area with an ambitious road building program. A bond issue for that purpose had recently been approved after a spirited election campaign. Advocates of the construction program argued that it would bring many jobs for citizens of the county. This explanation apparently convinced voters to favor the bond issue. There was naturally dissatisfaction when the road contractors brought in their own laborers, and it did not help that the workers were black. The presence of large numbers of Negroes in four road camps around LaBelle created a new element in the lives of local inhabitants unaccustomed either to outsiders or blacks in large numbers. Resentment and frustration boiled over on May 11, resulting in a cruel, grisly scene of torture and death at midday on the main street of LaBelle.

Just three days earlier Florida had once again been thrown into "the limelight of unpleasant notoriety" when the body of Parker Watson was discovered. Having been arrested for burglary at Clearwater, he had been taken from the deputies who were transporting him to jail in St. Petersburg. The officers had surrendered their prisoner without a struggle. His bullet-riddled body was later discovered with acid burns covering the face.¹⁴

On the morning of May 11 Henry Patterson, a black in his mid-twenties, was working on the road near the outskirts of

14. *New York Age*, May 22, 1926.

LaBelle. Apparently seeking water, he walked into the yard of a house where Mrs. Bennett Crawford was ironing near an open door. She looked up and saw the black man approaching, became frightened, and ran screaming into the street. Realizing his predicament, Patterson fled. Neighbors concluded that the woman had been assaulted and began forming search parties. Within a short time dozens of individuals had ceased their normal daily activities to become part of a frenzied mob bent on revenge. Sheriff Dan L. McLaughlin conveniently decided to search for the culprit at nearby Port Goodno, and he was consequently out of town when Patterson was apprehended.¹⁵

The mob, estimated at between forty and sixty strong, and composed of several local officials and prominent citizens, shot Patterson several times without killing him. Then, its members amused themselves for a while by allowing him to get away from them. Once he broke away and ran up to Mary Hayes Davis, editor of the local newspaper who was standing in the doorway of her office, and begged for help. Powerless to intervene, she replied, "Man, I cannot help you. Pray to your God." The terrified, bleeding victim jogged away down the street about fifty feet ahead of the pursuing mob, desperate for a place to hide. When he attempted to cross a wire fence, someone shot him with a shotgun and he fell. Still alive, he was then placed on the running board of a Hupmobile roadster and paraded down LaBelle's main street. During the grisly procession, Patterson was occasionally kicked and pieces of his flesh were cut off and waved aloft for bystanders to see. Just south of LaBelle's new courthouse, the helpless creature was hanged to a pine tree, and his body was filled with more bullets.¹⁶

The only person who attempted to interfere with the mob was Judge Herbert A. Rider, the fifty-year-old, Georgia-born county prosecutor. Himself a rugged frontiersman who believed in self-reliance and direct action and who had more than once supplemented his legal discourses with his fists, Rider was appalled at the barbaric madness he saw. "I had never dreamed that members of the human family could be so brutal," he later wrote. "I heard Patterson's plea to that mob for . . . a chance, a

15. *Tampa Tribune*, May 12, 1926.

16. *Ibid.*, May 15, 1926.

trial, and then his plea for mercy that would have . . . melted any sane person."¹⁷ From his front porch he called on the mob to stop its tortures and turn the alleged offender over to the authorities. He was hooted and jeered by the blood-crazed group as it continued on its grisly way. But Judge Rider would be heard from again.

Shortly after Patterson's body was hung, Mrs. Crawford, who had been overlooked in the excitement, managed to tell her story. She explained that the Negro had done nothing, but that she became frightened at the sight of him approaching her door and involuntarily screamed and ran. A few days later, Perry C. Hull, former LaBelle mayor and local ice dealer, gave an almost incredible explanation of the mistake. He was at the time in Arcadia with about twenty-five other LaBelle residents visiting some of the mobsters who had been arrested for their offense. "The reports that have been sent out in regard to the affair have not done our city and our people justice," he said. "The negro had not attacked the white woman, but he had acted in a suspicious manner, which gave rise to the report that he had attacked her. . . . The people, believing that they were acting in the protection of womanhood, hunted and found the man, and one thing leading to another, the lynching was the climax."¹⁸

Considering his position, the sheriff's attitude was even more amazing. Having done nothing to prevent or interfere with the lynching, Sheriff McLaughlin defended the seventeen men subsequently arrested for the crime. "These boys have a lot of right on their side and it is time their side of the case was presented," he declared, adding that the trouble had been coming for a long time: "It started when we were having a campaign down here for a bond issue to build good roads. People who were pushing the bond issue promised work to all the boys if they would vote for it. . . . The next thing we knew contractors imported a lot of negroes and the voters who supported the bond issue could not get work on the roads. They felt like they had been tricked, and naturally they resented the presence of the negroes here. This is the story behind this trouble. There are a number of persons

17. Herbert A. Rider to Mary McLeod Bethune, June 15, 1926, C-351, NAACP Papers.

18. New York *Evening Post*, May 31, 1926, *ibid.*; Arcadia *Arcadian*, May 21, 1926, *ibid.*

living here who don't want these negroes working on the roads."¹⁹

The lynching certainly stopped the blacks from working on the roads, but it also interrupted every other activity. Blacks fled any way they could. Three truckloads left for Fort Myers and two more for Moore Haven. Some blacks left on foot. Excited gangs roamed the town threatening further violence against them. The construction foreman assembled all remaining workers in one camp for better security. They had the sheriff deputize about a dozen local residents to act as guards, but that official additionally called on Governor Martin for national guardsmen. About forty men of Battery F, 116 Field Artillery, from Arcadia arrived a little more than a day after the lynching. Captain S. C. Smith, the detachment commander, said he was prepared for a lengthy stay. The troops set up two machine guns in the center of town and patrolled the streets for the next six days.²⁰

Outraged at the ugly event, Judge Rider called for a coroner's inquest. County Judge Wesley C. Richards, the coroner, was sympathetic with Rider's determination to see that justice was done. In a week-long inquest before a hostile jury, Rider questioned reluctant witnesses while Judge Richards presided impartially over the hearing. The key witnesses were Sheriff McLaughlin and Town Marshal Radford E. Edwards. The latter had been an active lyncher. With biting sarcasm, Rider expressed amazement that "of 25 or 30 men these officials have known all their lives, they can now remember the names of only four or five."²¹ But he and Judge Richards persisted, and on May 14, Stanley Aultman; Driz Curry, a young cowman; Lemuel Howard, a farmer; and Ham Smith, a laborer, were arrested and taken by the soldiers to jail in Arcadia.²² During the next few days thirteen more men were arrested and jailed either at Arcadia or Fort Myers. They were Hurd L. Reeves, county tax assessor; Radford E. Edwards, LaBelle town marshal; Van Curry, Glades County school board member; Coy Mercer, the minor son of a Hendry County commissioner; Norman Walker, foreman of the

19. *Tampa Tribune*, May 17, 1926.

20. *Jacksonville Florida Times-Union*, May 13, 1926, C-351, NAACP Papers; *New York Evening Post*, May 13, 20, 1926, *ibid.*; *Jacksonville Florida Metropolis*, May 13, 1926, *ibid.*; *Tampa Tribune*, May 14, 1926.

21. *Tampa Tribune*, May 14, 1926.

22. *Ibid.*, May 15, 1926.

Curtis-Bright cattle ranch; Duane Cox, a mail carrier; Harney Aultman; Hubbard Coleman; James Cross; Dick Curry; Herbert Tillman; John Frazier, Jr.; and Colon Godbolt.²³

The troops left LaBelle and some road work resumed, although the armed deputies continued to guard the black workers. But with seventeen men in jail without bail on murder charges, and many local residents sympathetic with them, there was still great tension in the community. To the chagrin and anger of many of their neighbors, Rider and Richards, joined by John F. Webber, president of the Hendry County chamber of commerce, and F. Watts Hall, president of the local bank, remained determined to see the men prosecuted.²⁴

Governor Martin requested Circuit Court Judge George W. Whitehurst immediately to call a special session of the grand jury because those prisoners who were innocent should be freed as speedily as possible.²⁵ Whitehurst complied, and on May 31 State Attorney S. Watt Lawler argued for a change of venue, while Louis O. Gravely for the defense insisted that the hearings be conducted in LaBelle.²⁶ The change of venue was granted, and on June 3 hearings were conducted on habeas corpus petitions. The judge ordered the men released, eight without bail and nine on \$10,000 bail each.²⁷

Alarmed at the virtual epidemic of lynchings in Florida during early 1926, Herman Dann, president of the state chamber of commerce, announced the organization's concern and promised Governor Martin its cooperation "to the fullest in the maintenance of law and order." The chamber's directors unanimously adopted a statement declaring that "this condition must not continue if Florida is to prosper as she deserves. . . . Although there have been 143 recorded lynchings in Florida since 1900, this is the first to be followed by a vigorous prosecution of the offending mob. . . . The State Chamber of Commerce wishes . . . to do all in its power to create the proper regard for law and

23. *Ibid.*, May 18, 1926.

24. Rider to Johnson, August 27, 1926, C-351, NAACP Papers.

25. *Tampa Tribune*, May 23, 1926.

26. *Ibid.*, May 23, 31, 1926; Rider to Johnson, June 26, 1926, C-351, NAACP Papers.

27. *Tampa Tribune*, June 2, November 29, 1926; Hendry County Commissioners' Minute Book Number One, 392, Hendry County Courthouse; Rider to Johnson, October 8, 1926, C-351, NAACP Papers.

order." In a vigorous editorial entitled "Let's Stop This," the *Tampa Times* endorsed the chamber view.²⁸

About the same time a visitor in LaBelle, who was described as a wealthy New York woman of culture, spoke with Judge Rider about his investigation into the lynching. She suggested that he communicate with Mary McLeod Bethune of Daytona Beach who might be able to secure assistance from the NAACP. Rider wrote to Mrs. Bethune, and she forwarded his letter to NAACP Secretary James Weldon Johnson. Impressed that this was "one of the few cases in which there seems to be any reaction on the part of the local whites for justice," Johnson and his directors sent Rider \$300 for expenses. This in turn encouraged Rider, Richards, Webber, and Hall to form a fund-raising committee in Florida. Proceeds were sent through M. D. Potter, Negro editor of the *Tampa Bulletin*, to the NAACP headquarters in New York, to be matched by that organization and returned to the LaBelle committee for use in the case. Several people around the state pledged funds to them.²⁹

In response to a letter from the LaBelle committee, Clark Foreman of the Commission on Interracial Cooperation made two trips from Atlanta to look into the case against the lynchers and to recommend action to his organization. Foreman and Will Alexander committed the commission to assist the Florida committee on a matching basis up to \$500. This approach was intended to involve as many Floridians as possible to establish a base for action in the future, and at the same time to give substantial assistance in a case which seemed to offer a fair chance of a conviction.³⁰

Despite these favorable developments in the summer of 1926, several setbacks occurred in the fall. The disastrous hurricane in September, which inundated southern Florida and ended the "boom," attracted the attention of a sympathetic nation and

28. Press release, Commission on Interracial Cooperation, *Tampa Times*, July 2, 1926, C-351, NAACP Papers; *New York Age*, July 3, 1926.

29. Johnson to Bishop John Hurst, September 14, 18, 1926, C-351, NAACP Papers; Rider to Bethune, June 15, 1926, *ibid.*; Rider to Johnson, June 26, 1926, *ibid.*

30. Will Alexander to Clark Foreman, August 27, 1926, 17-B-7-c, Box 74, Commission on Interracial Cooperation Collection, Trevor Arnett Library, Atlanta University; Alexander to Johnson, August 27, 1926, C-351, NAACP Papers.

overshadowed the lynching case. People who had pledged aid to the LaBelle committee were either economically ruined by the floods or they concentrated their efforts on aiding the homeless hurricane victims. Rider wrote that the little town of LaBelle had suffered about \$300,000 in damages. But far worse than that, his witnesses were being driven from the state or terrified into silence by the lynchers and their friends. The person Rider considered "our most material witness" had left Florida and was refusing to return unless compelled to do so. The absent witness said his friends were writing "that if I should come back for the trial I surely would get killed as people in LaBelle are still very blood thirsty." "My people are opposed to me going to that trial," he wrote, and, suggesting that he shared their concern, he added, "I am not afraid of law, but I am afraid of murders." For the first time Rider expressed his feeling that "unless some strong force or pressure is brought to bear . . . I am apprehensive that there is going to be a gross miscarriage of justice."³¹ He had further cause for concern when State Attorney Lawler resigned, citing the LaBelle lynching case as one of the reasons. The governor appointed Guy M. Strayhorn of Fort Myers to replace him. The LaBelle committee wondered whether the new prosecutor might be more interested in disposing of the case than in obtaining convictions.

The trial was finally scheduled to begin on November 29 at Fort Myers. In a stormy three-day session, the grand jury heard about forty witnesses. There were frequent angry arguments inside the grand jury room, but listeners outside could not hear the discussions. Then, a heated encounter occurred outside the courtroom between Judge Wesley Richards and State Attorney Strayhorn over the latter's presentation of the case. Richards was upset because the entire transcript of the coroner's inquest, a crucial document, was missing and Strayhorn could not account for it. Richards also chastised the lawyer for the way he was handling witnesses before the grand jury. Strayhorn angrily retorted that he was doing "everything possible" to get the case before the jury.³² The grand jury failed to indict a single person, but it recommended removal of Sheriff McLaughlin because he

31. Rider to Johnson, October 8, 1926, C-351, NAACP Papers.

32. *Tampa Tribune*, December 4, 1926.

had "made absolutely no effort to disperse the mob or to get the negro away or to prevent him from being hanged." It went on to say, "All of these witnesses have, with only a few exceptions, testified with seeming great reluctance, the majority appearing to be afraid to give any direct and positive evidence as to the identity of the members of the mob, the result being that we have not been able to obtain sufficient evidence to identify any of the members of the mob which had a part in the killing of this Negro." Without reference to why the transcript was missing, defense attorney Louis Gravely declared "the so-called investigation held before the coroner's jury at LaBelle was prejudiced and in utter disregard of the law," adding the irrelevant observation that he could "prove that there was a good deal of politics in this matter."³³

"The Bloody Blot Remains," was the title of the *Tampa Tribune* editorial of December 7, "An innocent Negro was brutally murdered by a mob at LaBelle. He had committed no offense. The victim was beaten, stabbed, shot, mutilated, before being hanged. All this was in broad daylight. It was a 'public demonstration.' There was practically no effort at concealment of identity on the part of members of the mob. The horrible affair was witnessed by almost the entire populace. Scores of citizens looked on and easily recognized fellow-citizens they had known for years. . . . The Grand Jury convened last week. . . . Witnesses who had testified at the coroner's inquest and whose testimony resulted in the accusation of seventeen men as members of the mob, also testified before the Grand Jury. But something happened to these witnesses in the interim. Their memories evidently proved defective. What they knew clearly at the inquest, they had 'forgotten' before the Grand Jury. . . . Men who had looked on, in the clear light of day, while the crime was being perpetrated, and who identified some of the perpetrators, could not 'remember' a few months later." The editorial also referred to the coroner's inquest transcript, commenting that its absence should itself have been the object of an inquiry and someone should have been held to account for failure to produce it.³⁴ The Jacksonville *Florida Sentinel* applauded the *Tribune* editorial

33. Ibid., December 5, 1926.

34. Ibid., December 7, 1926.

and commended the "honest effort" of the Hendry County citizens who had tried to see that justice was done. But it insisted that Florida would never realize its potential until black and white people could feel safe from such atrocities as the lynching of Henry Patterson at LaBelle.³⁵

Governor Martin thought the grand jury effort to blame Sheriff McLaughlin for the lynching "remarkable."³⁶ Refusing to remove him, Martin said the sheriff could scarcely be blamed for not stopping the mob when the grand jury itself could not identify its members.³⁷ While McLaughlin remained in office, there was a determined move by some county commissioners to remove Judge Rider from his position as county prosecutor. At the same time, however, the commissioners' minute books show that he had many strong supporters.³⁸

Judge Rider had never been alone in his belief that the lynchers should be punished. As he had affirmed, "We have a few good law abiding citizens who are doing their part manfully toward bringing about better conditions."³⁹ Wesley Richards had certainly placed himself squarely with Rider, and both John Webber and F. Watts Hall had been open about their feelings. There were apparently several other local citizens who agreed, but were more reticent about revealing themselves.

But it was Herbert A. Rider who had called the mob to account during the lynching, and it was he who persistently pursued the case during the months following the coroner's inquest, even though his official responsibility ended at that time. Why did he do it? Several months after the event he explained that he had acted "in order that conditions in the coming years may be bettered and that a deplorable stigma and shame may forever be removed from our fair land."⁴⁰ That was after he had time for reflection. It seems that on the spur of the moment his basic sense of right and wrong was offended and he reacted from a sense of moral outrage. He did so at considerable risk and subsequently paid a price. "It ruined him politically,"

35. Jacksonville *Florida Sentinel*, December 25, 1926, NAACP Papers.

36. *Tampa Tribune*, December 16, 29, 1926.

37. *Ibid.*, December 14, 1926.

38. Hendry County Commissioners' Minute Book Number One, 392, *passim*.

39. Rider to Johnson, June 26, 1926, C-351, NAACP Papers.

40. *Ibid.*

said his son.⁴¹ His children were sometimes treated contemptuously and insulted as “nigger-lovers” by a few of their schoolmates. And yet, those same children still live in LaBelle and are respected citizens there. Furthermore, Judge Rider is remembered by many local residents in terms that strongly suggest admiration, fondness for the memory of a respected citizen, and pride that they had known him. Either times have changed enough in the past fifty-four years to give a different perspective to his actions, memory has dimmed the animosities aroused by the lynching and its aftermath, or just possibly people retrospectively admired the judge for having the courage of his convictions and acting as he did without regard to personal ambition and safety.

41. Interview with Dr. Sam Rider, February 1979, LaBelle.